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UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**ORDER NO. 15: DENYING IN PART OURA’S MOTION TO STRIKE DEPOSITION
TESTIMONY**

(August 27, 2026)

Oura moves to strike deposition testimony of two of Samsung’s experts, Drs. Warren and Welch. Motion Docket No. 1478-08 (EDIS Doc. ID 887862). Samsung opposes (EDIS Doc. ID 889200). Oura filed a reply (EDIS Doc. ID 889656). For the reasons detailed below, the motion is DENIED-IN-PART.

The gravamen of Oura’s motion is its contention that Samsung has not alleged infringement of its [REDACTED] (also called Oura Ring 5) and [REDACTED], and so its experts should be precluded from providing any testimony about them. *See* Mot. at 1. In opposition, Samsung contends that Ring 5 and [REDACTED] should not be adjudicated for the reasons it stated in opposing Oura’s motion for summary determination on non-infringement. Opp. at 1 and *see* Motion Docket No. 1478-07 and related filings. Samsung also contends that the testimony of both Drs. Warren and Welch and “particularly Dr. Warren for the ’789 patent, was compelled by the fact that Oura disclosed new non-infringement theories or evidence for Ring 5 and [REDACTED] for the first time in the rebuttal expert report of Oura’s expert, Dr. Mortazavi.” Opp. at 1.¹ At the same time that Samsung contends

¹ Samsung states that it intends to file a motion in limine regarding “any undisclosed non-infringement opinions of Oura’s technical expert . . . regarding the Ring 5 and [REDACTED].” *Id.* at 1, n.1.

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that Ring 5 and [REDACTED] should not be adjudicated, it contends that they should be for purposes of arguing that they are “materially the same as Ring 4 for infringement.” Opp. at 7–8.

Oura contends that it timely disclosed its Ring 5 and [REDACTED] products. Reply at 5. According to Oura, because it identified those products, it was then Samsung’s burden to assert infringement, which Oura contends Samsung never did. Reply at 3–4. Oura provided specific non-infringement arguments as to the ’789 patent in the rebuttal report of its expert, which the parties appear to agree were not provided earlier in Oura’s contentions. Opp. at 1 and Reply at 4. Oura’s position is that it was not obligated to earlier provide non-infringement contentions as to products Samsung did not accuse of infringement. Reply at 4.

There are two separate, though related, issues raised by this motion. The first is specific to the ’789 patent and deposition testimony from Samsung’s expert, Dr. Warren, in response to the non-infringement arguments provided by Oura’s expert in his rebuttal expert report as to at least Ring 5. Mot. Ex. A, Warren Tr, at 200:10–215:2. This issue hinges on whether the non-infringement arguments in Oura’s rebuttal expert report were proper, an issue not raised in this motion, but which Samsung states in its opposition that it intends to raise and which now appears to have been raised in Samsung’s motion in limine no. 4, Motion No. 1478-016 (EDIS Doc. ID 892526). Whether Dr. Warren’s deposition testimony at 200:10–215:2 will be stricken will be considered with Samsung’s motion in limine no. 4. This issue is therefore held in abeyance.

The second issue is the propriety of testimony from Samsung’s experts that Oura’s Ring 5 and [REDACTED] are, for purposes of assessing infringement, the same as its Ring 4. Oura states that “Samsung now contends that the same reasoning lodged against Ring 4 (which was disclosed) may extend to Ring 5 and [REDACTED].” Reply at 8, citing Opp. at 7–8. For good reason. That is exactly what *Oura* said in discovery. In response to an interrogatory asking Oura to identify its accused

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products, Oura on April 29 stated: “Oura further identifies the ‘[REDACTED]’ ring, which is currently under testing and development release phase, and will be released as Oura Ring Gen. 5. Oura further identifies the [REDACTED].” Mot. Ex. H at 12. In response to an interrogatory asking for its non-infringement contentions, Oura stated on April 29: “Oura further states that the ‘[REDACTED]’ ring, which is currently under testing and development release phase, and will be released as Oura Ring Gen. 5, and the [REDACTED], do not directly infringe, induce infringement of, or contribute to the infringement of the ’359 Patent, the ’677 Patent, the ’675 Patent, and the ’789 Patent for at least the same reasons as set forth in Oura’s First Supplemental Response to Interrogatory No. 7.” *Id.* at 79. In its final non-infringement contentions on May 27, Oura stated that its non-infringement positions for each of the ’359, ’677, ’675, and ’789 patents applied equally to all versions and sizes of the Oura accused products. Opp. Ex. 4 at 84 (’359 patent), 102 (’677 patent), 127 (’675 patent), and 145 (’789 patent). That would include Ring 5 and [REDACTED], which Oura itself previously identified.

Oura contends that “Samsung provides no reason to depart from the established procedure that, absent party agreement, products are adjudicated on a product-by-product basis, and if a patentee wishes to make an argument of representativeness, this is an expert opinion that must be supported by evidence concerning the represented products.” Reply at 8. Here, however, Oura itself provided that evidence, stating repeatedly and unequivocally that its Ring 4 was the same as Ring 5 and [REDACTED] for purposes of assessing non-infringement. Oura did not have to make those statements, but it did. As a result, Samsung’s experts were justified in relying on Oura’s statements that the Oura Ring 4 was the same as the Oura Ring 5 and [REDACTED]. There was, therefore, no need for Samsung’s experts to articulate infringement contentions for Ring 5 and [REDACTED] that were the

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same as its infringement contentions for Ring 4. Oura identified Ring 5 and [REDACTED] as accused products and repeatedly stated through its final contentions that they were the same as Ring 4 for purposes of assessing non-infringement. Testimony from Samsung's experts that Ring 5 and [REDACTED] are the same for purposes of assessing infringement was not improper and simply reiterated Oura's own position.

This is not, as Oura contends, any improper flipping of the burden of proof on infringement. Reply at 4–5. Samsung, as the complainant, has and always maintains the burden of proof on infringement. In attempting to meet that burden, Samsung is entitled to rely on Oura's statements in discovery that for purposes of non-infringement, its Ring 5 and [REDACTED] products are the same as its Ring 4 product. Oura contends that it “*never*” represented that Ring 5 and [REDACTED] were “materially the same,” and that what “Samsung seems to cling to is Oura's preliminary allegation that the Ring 5 and [REDACTED] do not directly infringe, induce infringement of, or contribute to infringement of the '359 Patent, the '677 Patent, the '675 Patent, and the '789 Patent for at least the same reasons as set forth in Oura's First Supplemental Response to Interrogatory No. 7.” Reply 8 (all emphases in original).

This was not a “preliminary allegation” by Oura. In its final contentions, Oura stated that its non-infringement positions for each of the '359, '677, '675, and '789 patents applied equally to all versions and sizes of the Oura accused products. Opp. Ex. 4 at 84 ('359 patent), 102 ('677 patent), 127 ('675 patent), and '145 ('789 patent). And Oura itself earlier identified Ring 5 and [REDACTED] as accused products. Mot. Ex. H at 12. Samsung was entitled to rely on those representations. The remaining testimony Oura seeks to strike goes to this point. Warren Tr. (Mot. Ex. A) at 35:14–15: “inside the Oura Ring 4, which, you know, we assumed was representative of the Oura Ring 5 as well;” 41:5–10: “that's a multiday to multiweek process, which is one of the

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reasons I -- I didn't have teardowns for the Oura Ring 5. I thought the Oura Ring 4 was representative of the Oura Ring 5, but I didn't do testing on the Oura Ring 5 because it was released to the market too late relative to this first opening report;" and 137:7-9: "opinion on partial information, already knowing that the partial information, for example, for the Oura Ring 5 was incomplete, that puts me in a bit of an awkward spot;" Welch Day 1 Tr. (Mot. Ex. B) at 186:15-18: "And, by the way, I believe the Oura Ring 4, the Oura Ring 5, and all of the -- you know, all of that that stems from [REDACTED], I had traced the [REDACTED] for all of this;" and Welch Day 2 Tr. (Mot. Ex. C) at 379:17-386:2: opinions on infringement of Oura 5 Ring and [REDACTED] as being the same as for Oura 4 Ring. Oura's motion to strike this testimony is therefore DENIED.

To be clear, as to the above testimony, this order does not decide its factual accuracy and makes no determination on whether Ring 5 and [REDACTED] should be adjudicated with respect to the '359, '677, and '675 patents, to the extent that is a disputed issue.²

Motion No. 1478-08 is DENIED-IN-PART.

SO ORDERED.


Doris Johnson Hines
Administrative Law Judge

² The order on Oura's motion for summary determination found a disputed question of fact as to whether sufficient discovery was provided on Ring 5 and [REDACTED] for purposes of assessing infringement of the '789 patent. Order No. 14 (EDIS Doc. ID 892874).